

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARVAUGHN FAULKNER,

Petitioner

VS.

ALEXYA ROSE,

Respondent

) Case Number: FLD-21-396875

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Marvaughn Faulkner (Father) and Respondent Alexya Rose (Mother) have one child together, Josiah (DOB 12/8/2019, age 6).
- 2) On 8/25/21, the parties agreed in their related juvenile dependency case that Father would have sole legal and physical custody of Josiah and that Mother would have supervised visits through a visitation center. On 10/29/2021, final judgment was entered in the dependency case incorporating the parties' agreement and awarding Mother a minimum of one-hour supervised visits per week. The Court found Mother had not made substantial progress with anger management training, parenting classes, or individual counseling and had not consistently visited Josiah nor maintained a safe and stable environment.
- 3) Since then, Mother has sought, and the Court has denied her request for, sole legal and physical custody.
- 4) On 6/6/2025, Mother filed a request for unsupervised parenting time and provided the Court with evidence of progress she has made. In a Findings and Order After Hearing filed 10/3/2025, this

1 Court ordered that Mother shall have parenting time with Josiah every Friday and Saturday from
2 1pm to 3pm, to be supervised by Josiah's maternal grandmother. The Court ordered that before
3 visitation begins, the grandmother must file with the Court a Declaration of Supervised Visitation
4 Provider (NonProfessional) (FL-324(NP)) confirming the maternal grandmother's qualifications.
5 The Court scheduled a review hearing for 3/24/2026.

- 6 5) On 3/11/2026, Mother filed an update declaration in which she states that Father has not allowed
7 her to see Josiah. She does not state whether the maternal grandmother filed the required form
8 with the Court. She seeks unsupervised parenting time with Josiah from Friday after school to
9 Sunday at 5pm.
- 10 6) Both parties appeared at a hearing on 3/24/2026 and provided sworn testimony. The Court
11 ordered one hour of weekly supervised visits for Mother through Rally Family Visitation Services
12 (Rally). The Court ordered the parties to contact Rally to complete their intake and ordered Father
13 to submit to Room 402 paperwork proving his representation that his mother has guardianship
14 over Josiah. The Court set a review hearing for 5/26/2026 at 9AM in Department 404 and ordered
15 the parties to file and serve update declarations at least 10 days before the review hearing.
- 16 7) Neither party has submitted an update declaration.

17 **B. Findings and Orders**

- 18 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
19 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
20 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
21 child is the United States.
- 22 2) The Court finds it is in Josiah's best interest to maintain the current custody and parenting time
23 order. If the parties have not yet done so, they shall complete their intake with Rally on or before
24 5/29/2026 so that visits may begin as soon as possible.
- 25 3) No appearances are required at the 5/26/2026 hearing because the Rally visits have not yet begun.
26 This matter is continued to **Thursday, 9/3/2026 at 9:00 AM in Dept. 404**. At least 10 days
27 before the review hearing, the parties shall file and serve brief update declarations informing the
28 Court how the Rally visits have been going.
- 29 4) The Court will prepare the Findings and Order After Hearing.